

Calendar Line 5

Case Name: *Javier Cruz vs Eric Hansen*
Case Number: 22CV398311

Defendant/Cross-Complainant ERIC C. HANSEN (Hansen) moves the Court to strike the Answer of JAVIER JOSE CRUZ (Cruz) to Hansen's Cross-Complaint and to enter his default thereon and for an award of monetary sanctions.

As is apparent from the record in this case, Cruz did nothing to prosecute his case and has done nothing in defense of the Cross-Complaint. The Court has ordered Cruz to pay additional monetary sanctions in a total amount of \$8,351.06 and he has paid nothing. Hansen's motion is well taken. Not surprisingly, Cruz has filed no opposition to the motion. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

Hansen's motion is GRANTED. Cruz's answer to the Cross-Complaint is hereby STRICKEN. Hansen may therefore pursue default and default judgment on the Cross-Complaint.

In addition, Hansen's request for additional monetary sanctions in the amount of \$1,035.75 is GRANTED. Cruz shall pay Hansen this additional \$1,035.75 within 30 days of the date of service of this order.

Defendant/Cross-Complainant Hansen shall prepare the final order accompanied by Form EFS-020 within 10 days of the date of the hearing.

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Calendar Line 6

Case Name: *Fihussein Elie v. General Motors LLC*

Case No.: 25CV477314

Before the Court is Defendant General Motors LLC's ("Defendant" or "GM") motion to strike portions of the Complaint filed by Plaintiff Fihussein Elie ("Plaintiff").

This is a lemon law action. According to the allegations of the Complaint, on January 15, 2024, Plaintiff entered into a warranty contract with GM regarding a 2024 Chevrolet Corvette (Complaint, ¶ 6), and that "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, engine defects, transmission defects, electrical defects; among other defects and nonconformities" (*id.* at ¶ 11). Plaintiff alleges that he requested a buyback on August 28, 2025, but Defendant failed to provide restitution as required under the Song-Beverly Consumer Warranty Act ("Song-Beverly"). (*Id.*, ¶ 24.)

Based on the foregoing, Plaintiff initiated this action on October 10, 2025, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement-concealment. On January 16, 2026, Defendant filed the instant motion to strike the following portions of the Complaint: ¶¶ 29-31, 36, 39 and subdivision (f) of the Prayer. Plaintiff opposes the motion.

In the paragraphs that are the subject of this motion, Plaintiff requests civil penalties under the Song-Beverly Act. As Defendant maintains, Code of Civil Procedure section 871.24 ("Section 871.24") requires a plaintiff seeking civil penalties under the Song-Beverly Act to comply with specific pre-suit notice and vehicle retention requirements. Specifically, Section 871.24 mandates that at least 30 days prior to commencing an action for civil penalties under the Song-Beverly Act, the plaintiff "shall" notify the manufacturer, in writing, of his name, the vehicle's identification number ("VIN"), a summary of the repair history, and a demand for restitution or replacement of the vehicle. (Code Civ. Proc., § 871.24, subs. (a).) At the time the notice is sent, the plaintiff must have possession of the vehicle. (Code Civ. Proc., § 871.24, subd. (c).)

In the Complaint, Plaintiff requests civil penalties, but fails to plead compliance with the aforementioned requirements. When pre-suit notice or other conditions precedent are required by statute, a plaintiff must plead that he performed all required conditions. (See, e.g., *Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 381-382 [interpreting similar statutory framework according to its plain language and holding that failure to plead compliance as to claim seeking civil penalties was fatal to those claims].) In his opposition, Plaintiff urges that the Court can "reasonably infer" that he complied with the pre-notice requirement based on his allegation that he requested a buyback from Defendant on August 28, 2025. (See Complaint, ¶ 24.) The Court disagrees. While a general allegation of compliance with statutory conditions is generally adequate at the pleading stage (see, e.g., *Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236-1237), that is not what Plaintiff has done in the Complaint, and him requesting a buyback does not necessarily equate to *actual* compliance with the requirements of Section 871.24, subdivision (a). Consequently, Defendant's motion to strike is GRANTED WITH 10 DAY' LEAVE TO AMEND.